

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF KULVINSKAYA AND OTHERS v. RUSSIA

(Applications nos. 28133/21 and 22 others –
see appended list)

JUDGMENT

STRASBOURG

8 February 2024

This judgment is final but it may be subject to editorial revision.



In the case of Kulvinskaya and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 18 January 2024,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers or participants of public assemblies. They also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. JURISDICTION

6. The Court observes that the facts giving rise to the alleged violations of the Convention occurred prior to 16 September 2022, the date on which the Russian Federation ceased to be a party to the Convention. The Court therefore decides that it has jurisdiction to examine the present applications (see *Fedotova and Others v. Russia* [GC], nos. 40792/10 and 2 others, §§ 68-73, 17 January 2023).

III. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

7. The applicants complained principally of disproportionate measures taken against them as organisers or participants of public assemblies, namely their arrest in relation to the dispersal of these assemblies and their conviction for administrative offences. They relied, expressly or in substance, on Article 11 of the Convention.

8. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC], no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

9. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014, and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

10. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

11. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

IV. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

12. Some applicants submitted other complaints which also raised issues under the Convention and its Protocols, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible.

13. Having examined all the material before it, the Court concludes that these complaints also disclose violations of the Convention and its Protocols in the light of its findings in *Butkevich v. Russia*, no. 5865/07, §§ 63-65, 13 February 2018, *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 115-31, 10 April 2018, and *Korneyeva v. Russia*, no. 72051/17, §§ 34-36, 8 October 2019, as to various aspects of unlawful deprivation of liberty of organisers or participants of public assemblies; *Karelin v. Russia*, no. 926/08, §§ 58-85, 20 September 2016, concerning the absence of a

prosecuting party in the proceedings under the Code of Administrative Offences (the CAO); and *Martynyuk v. Russia*, no. 13764/15, §§ 38-42, 8 October 2019, relating to the lack of suspensive effect of an appeal against the sentence of administrative detention.

V. REMAINING COMPLAINTS

14. Some applicants raised further additional complaints under Article 6 of the Convention concerning other aspects of fairness of the administrative-offence proceedings. In view of the above findings, the Court considers that there is no need to deal separately with these remaining complaints.

VI. APPLICATION OF ARTICLE 41 OF THE CONVENTION

15. Regard being had to the documents in its possession and to its case-law (see in particular *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Holds* that it has jurisdiction to deal with these applications as they relate to facts that took place before 16 September 2022;

3. *Declares* the complaints under Article 11 of the Convention and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *finds* that there is no need to examine separately the remaining complaints under Article 6 of the Convention;

4. *Holds* that these complaints disclose a breach of Article 11 of the Convention;

5. *Holds* that there has been a violation of the Convention and the Protocols thereto as regards the other complaints raised under the well-established case-law of the Court (see appended table);

6. *Holds*

(a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;

(b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points.

Done in English, and notified in writing on 8 February 2024, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	28133/21 17/05/2021	**Natalya Eduardovna KULVINSKAYA** 1961	Anna Yevgenyevna Bochilo Barnaul	Rally "Free Navalnyy" Barnaul 23/01/2021 Rally "Free Navalnyy" Barnaul 21/04/2021	article 20.2 § 6.1 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 40 hours of community work	Altai Region Court 17/03/2021 Altai Regional Court 16/06/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Art. 5 (1) - unlawful detention - 1) escorting to and detention at the police station after compiling an offence report from 23/01/2021 until 24/01/2021; 2) escorting to the police station for compiling an offence report on 21/04/2021	4,000
2.	41690/21 29/07/2021	**Viktor Aleksandrovich NEMYTOV** 1982	Nikolay Sergeyevich Zboroshenko Mytishchi	Rally "Free Navalnyy" Moscow 02/02/2021 Rally "Free Navalnyy" Moscow 02/02/2021 Anti-war protest Moscow	article 20.2 § 5 of CAO article 20.2 § 8 of CAO article 20.2 § 8 of CAO	fine of RUB 10,000 detention of 30 days detention of 28 days	Moscow City Court 16/04/2021 Moscow City Court 09/02/2021 Moscow City Court 01/03/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in all sets of the administrative-offence proceedings; Art. 5 (1) - unlawful detention - 1) escorting to the police station on 02/02/2021 for compiling an offence report (twice in one day); 2) escorting to and detention at the police station after compiling an offence report from 27/02/2022 until 28/02/2022; Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentences of administrative detention imposed on the applicant (on two occasions) were executed immediately, on account of the lack of suspensive effect of an appeal under the CAO	6,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative / criminal charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				27/02/2022					
3.	50436/21 21/09/2021	**Nikolay Mikhaylovich NOVIKOV** 1987	Nikolay Sergeyevich Zboroshenko Mytishchi	Rally "Free Navalnyy" Moscow 31/01/2021 Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 6.1 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Moscow City Court 29/06/2021 Moscow City Court 25/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 and 02/02/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000
4.	52681/21 30/09/2021	**Svetlana Valeryevna LOZOVSKAYA** 1975		Rally "Free Navalnyy" Ulan-Ude 23/01/2021 Rally "Free Navalnyy" Ulan-Ude 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 15,000 fine of RUB 20,000	Supreme Court of the Buryatia Republic 05/04/2021 Supreme Court of the Buryatia Republic 12/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 and 31/01/2021 for compiling offence reports; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000
5.	54522/21 14/10/2021	**Aleksandr Vladimirovich MASLOV** 2000	Aleksey Sergeyevich Lapuzin Samara	Rally "Free Navalnyy" Samara 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 20,000	Samara Regional Court 15/04/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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6.	55130/21 15/10/2021	**Konstantin Valeryevich NADEIN** 1968	Memorial Human Rights Centre Moscow	Rally "Free Navalnyy" St Petersburg 23/01/2021 Anti-war protest St Petersburg 06/03/2022	article 8.6-1 § 2 of St Petersburg Law on Administrative Offences article 20.2.2. § 1 of CAO	fine of RUB 4,000 detention of 7 days	Oktyabrskiy District Court of St Petersburg 23/06/2021 St Petersburg City Court 07/04/2022	Art. 5 (1) - unlawful detention - 1) escorting to the police station on 23/01/2021 for compiling an offence report; 2) escorting to and detention at the police station after compiling an offence report from 06/03/2022 until 07/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings Prot. 7 Art. 2 - delayed review of conviction by a higher tribunal - the sentence of administrative detention imposed on the applicant was executed immediately, on account of the lack of suspensive effect of an appeal under the CAO.	5,000
7.	61277/21 01/12/2021	**Irina Anatolyevna LEVCHENKO** 1964	Ivan Yuryevich Zhdanov Vilnius	Rally "Free Navalnyy" Krasnoyarsk 23/01/2021 Rally "Free Navalnyy" Krasnoyarsk 31/01/2021	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 10,000 fine of RUB 10,000	Krasnoyarsk Regional Court 08/07/2021 Krasnoyarsk Regional Court 10/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000
8.	22/22 26/11/2021	**Yegor Igorevich VASILCHENKO** 2001	Aleksey Vladimirovich Bushmakov Yekaterinburg	Rally "Free Navalnyy" Yekaterinburg 30/01/2021	article 20.2 § 5 of CAO	20 hours of community work	Sverdlovsk Regional Court 16/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 19/02/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
9.	28/22 26/11/2021	**Kirill Mikhaylovich GAVRIKOV** 1988	Aleksey Vladimirovich Bushmakov Yekaterinburg	Women's rights rally Yekaterinburg 08/03/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 11/08/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500

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10.	34/22 26/11/2021	**Aygizar Alfatovich ASFANDIYAROV** 1989	Aleksey Vladimirovich Bushmakov Yekaterinburg	Women's rights rally Yekaterinburg 08/03/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 21/07/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 08/03/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
11.	37/22 26/11/2021	**Anna Anatolyevna LUKASHENOK** 1990	Aleksey Vladimirovich Bushmakov Yekaterinburg	Women's rights rally Yekaterinburg 08/03/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 27/07/2021	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	3,500
12.	99/22 07/12/2021	**Aleksandra Andreyevna KLEVTSOVA** 1987	Yelena Yuryevna Pershakova Moscow	Rally "Free Navalnyy" Perm 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Perm Regional Court 08/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 28/01/2021 for questioning and on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
13.	279/22 02/12/2021	**Mikhail Mikhaylovich BULYGIN** 1992	Aleksey Valeryevich Vlasov Tula	Rally "Free Navalnyy" Tula 23/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Tula Regional Court 21/05/2021 (final decision served on the applicant on 02/06/2021)	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to the police station on 23/01/2021 for compiling an offence report	4,000
14.	336/22 10/12/2021	**Andrey Vladimirovich KRAYEV** 1983	Andrey Olegovich Valenkov Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 5,000	Nizhniy Novgorod Regional Court 17/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
15.	363/22 24/11/2021	**Nikita Aleksandrovich VOVK** 2000	Viktor Valeryevich Kochenkov Izhevsk	Rally "Free Navalnyy" Izhevsk 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Udmurtia Republic 24/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

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16.	425/22 26/11/2021	**Maksim Pavlovich BENEKHIN** 1994	Olimpiada Valentinovna Usanova Nizhniy Novgorod	Rally "Free Navalnyy" Nizhniy Novgorod 31/01/2021	article 20.2 § 6.1 of CAO	fine of RUB 10,000	Nizhniy Novgorod Regional Court 27/05/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
17.	3481/22 14/12/2021	**Anna Antonovna ROMANOVA** 1995	Daniil Alekseyevich Polyakov Voronezh	Rally "Free Navalnyy" Voronezh 31/01/2021	article 20.2 § 5 of CAO	fine of RUB 12,000	Voronezh Regional Court 15/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
18.	3506/22 10/12/2021	**Arina Andreyevna MAKHMUDOVA** 1999	Luiza Magomedovna Magomedova St Petersburg	Rally "Free Navalnyy" St Petersburg 31/01/2021	article 20.2.2. § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 15/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 31/01/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
19.	3533/22 18/12/2021	**Daniil Aleksandrovich IVANOV** 1995	Yelena Yuryevna Pershakova Moscow	Rally "Free Navalnyy" Moscow 02/02/2021	article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 21/06/2021	Art. 5 (1) - unlawful detention - escorting to the police station on 02/02/2021 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
20.	37202/22 12/07/2022	**Yelizaveta Vadimovna KRUPENINA** 1994	Sergey Aleksandrovich Loktev St Petersburg	Anti-war protest St Petersburg 26/02/2022 Anti-war protest St Petersburg 28/02/2022	article 20.2.2. § 1 of CAO article 20.2.2. § 1 of CAO	fine of RUB 10,000 fine of RUB 10,000	St Petersburg City Court 12/04/2022 St Petersburg City Court 12/06/2022	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings; Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 26/02/2022 until 27/02/2022 and from 28/02/2022 until 01/03/2022	4,000

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21.	48484/22 16/09/2022	**Oleg Petrovich ORLOV** 1953	Irina Aleksandrovna Yatsenko Moscow	Anti-war protest Moscow 26/02/2022 Anti-war protest Moscow 06/03/2022	article 20.2 § 5 of CAO article 20.2 § 5 of CAO	fine of RUB 20,000 fine of RUB 20,000	Moscow City Court 01/07/2022 Moscow City Court 07/07/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 26/02/2022 and 06/03/2022 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings	4,000
22.	48650/22 30/09/2022	**Aleksandra Vladislavovna KOZICHEVA** 1996	Mariya Sergeyevna Zyryanova St Petersburg	Anti-war protest St Petersburg 08/03/2022	article 20.2.2. § 1 of CAO	fine of RUB 10,000	St Petersburg City Court 31/05/2022	Art. 5 (1) - unlawful detention - escorting to and detention at the police station after compiling an offence report from 08/03/2022 until 09/03/2022; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000
23.	50123/22 13/10/2022	**Aleksandr Anatolyevich STREPETOV** 1968	Nataliya Andreyevna Baranova Moscow	Anti-war protest St Petersburg 04/03/2022	article 20.2.2. § 1 of CAO	fine of RUB 15,000	St Petersburg City Court 14/06/2022	Art. 5 (1) - unlawful detention - escorting to the police station on 04/03/2022 for compiling an offence report; Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings	4,000

[1] Plus any tax that may be chargeable to the applicants.